

Safeguarding the human

rights of journalists

operating in situations of

armed conflict

I. Introduction

“Every journalist killed or neutralized by terror is an observer less of the human condition. Every attack distorts reality by creating a climate of fear and self-censorship.”

-Barry James

Freedom of expression is one of the most important rights that people have been fighting for in the last few centuries. It promotes democratic governance, poverty reduction, environmental protection, gender equality, and the promotion of human rights. The independent media promotes freedom of expression by providing quality information to the public and raising awareness about the serious problems affecting the world. The journalists operating in situations of armed conflicts are risking their own life for the purpose of keeping the world updated about the ongoing situations in war zones. Thus, journalists should be safeguarded, because the freedom of the press shouldn't be at the cost of human life. Better frameworks should be implemented, respected and more severe penalties should be applied, as journalists are considered civilians and being attacked is declared as a war crime by the International Humanitarian Law Additional Protocol I (1977), Article 79. Journalists shouldn't have the risk of being killed, attacked or threatened, without the risk of impunity, that should be abolished because of states' due diligence and rule of law; It is a very common and serious problem in situations of armed conflict. Such harmful practices as self-censorship happen as targeted attacks from state and non-state armed groups continue. By safeguarding the human rights of journalists, the freedom of expression would rise, a fact that will enable progress in several fields around the world such as: democratic governance, poverty reduction, environmental protection, gender equality, and the promotion of human rights.^{1 2}

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extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.ohchr.org/sites/default/files/documents/issuues/journalists/2023-01-31/un-plan-on-safety-journalists_en.pdf

² <https://ihl-databases.icrc.org/en/ihl-treaties/api-1977/article-79>

II. Definition of Key Terms

Freedom of Expression

Freedom of expression is a fundamental human right that guarantees every individual the ability to seek, receive, and share information and ideas of all kinds through any medium, without interference from public authorities or other actors. It is protected under international human rights law and forms the foundation of democratic societies, enabling open debate, access to information, and accountability of power.

Freedom of the Press

Freedom of the press refers to the right of journalists, media professionals, and media organizations to collect, produce, and disseminate news and information independently, without censorship, intimidation, or undue interference from governments or powerful entities. It ensures that the media can operate as a watchdog of society, particularly in exposing corruption, human rights abuses, and violations during armed conflict.

Impunity

Impunity is the situation in which individuals or groups responsible for crimes or serious human rights violations are not investigated, prosecuted, or punished by the legal system. In the context of journalism, it often refers to attacks against journalists going unpunished, which weakens justice systems, undermines the rule of law, and encourages further violations by creating a sense that perpetrators will face no consequences.

Civilian Status

Civilian status is a legal classification under International Humanitarian Law that applies to individuals who are not members of armed forces and are not directly participating in hostilities. Civilians are granted protection from direct attack, unless and for such time as they take a direct part in hostilities. Journalists are normally considered civilians and are therefore entitled to protection in conflict zones.

Armed Conflict

Armed conflict refers to a situation involving prolonged armed violence between states (international armed conflict) or between governmental forces and organized non-state armed groups, or between such groups within a state (non-international armed conflict). The existence of armed conflict triggers the application of International Humanitarian Law, which establishes

rules to protect human life and dignity during war.

Self-Censorship

Self-censorship occurs when journalists or media professionals voluntarily restrict or alter the information they publish due to fear of retaliation, violence, legal consequences, or political pressure. It is not imposed directly by law but arises from unsafe environments, and it significantly undermines press freedom by limiting the public's access to complete and accurate information.

Targeted Attacks

Targeted attacks are deliberate acts of violence or intimidation directed at specific individuals or groups, such as journalists, because of their profession, reporting, or perceived influence. These attacks may include killings, kidnappings, harassment, or threats, and are intended to silence reporting, restrict information flow, and create fear within the media community.

Non-State Armed Groups

Non-state armed groups are organized armed entities that operate independently of official state military forces and may include militias, rebel groups, or insurgent organizations. Although they are not state actors, they are still bound by International Humanitarian Law and are responsible for respecting basic humanitarian principles, including the protection of civilians and journalists.

Due Diligence

Due diligence is a legal obligation requiring states to take all reasonable and appropriate measures to prevent human rights violations, protect individuals at risk, investigate abuses when they occur, and ensure accountability for perpetrators. In relation to journalists, it means that states must actively ensure their safety, not only by refraining from violations themselves but also by protecting them from harm by third parties.

Independent Media

Independent media refers to media outlets and journalists that operate free from political, economic, or governmental control or influence, allowing them to report news objectively and without bias or censorship. Independent media plays a critical role in ensuring transparency, exposing abuses of power, and providing citizens with accurate information, especially in contexts of conflict and crisis.

III. Background Information

Threats Faced by Journalists in Armed Conflicts

Journalists are becoming more and more caught in the middle of armed conflicts, resulting in taking an enormous risk to present themselves on the war zones to do news reports and become victims. They can end up being kidnapped, harassed, threatened, attacked or even killed. The targeted attack on journalists is considered a serious war crime in areas of armed conflict, where state and non-state armed groups attack journalists to eliminate any risk of exposing themselves or their war tactics and weapons. Instead of being seen just as objective transmitters of information, they are being punished for trying to raise awareness in the world about ongoing conflicts. Therefore, journalists often resort to self-censorship, reducing the quality and quantity of information available to the public, to protect themselves from harm, enduring physical or psychological pressure or being coerced to censor their content. This creates an environment where misinformation can spread easily.

Legal Protection under International Law

International Humanitarian Law, particularly the Geneva Conventions and their Additional Protocols, recognizes journalists as civilians who must be protected during armed conflict. Additionally, the International Covenant on Civil and Political Rights, guarantees freedom of expression, including: holding opinions without interference, seeking, receiving, and imparting information and ideas of all kinds, through any media.

Despite these protections, enforcement remains weak. Many states fail to fulfill their obligations of due diligence, meaning they do not adequately prevent or investigate violations against journalists. They shouldn't end up victims of either physical, psychological, or digital harassment and states implicated in ongoing armed conflicts must find better regulations and methods of supervision to cease the violation of journalists' human rights who work in any at risk territory.

Impunity and Lack of Accountability

The biggest challenge that remains unsolved is the states' involvement in investigating, arresting and preventing journalist casualties in the armed conflict zones. Because of the ongoing instability in some areas, weak police enforcement and corrupt political systems, in most cases, the attackers remain unidentified and unpunished. As a result, the rule of law is undermined and violence is encouraged. These situations continue to happen because no deterrence is being applied to solve this issue, therefore states that participate in armed conflicts must ensure the enforcement of the IHL convention that they have signed and ratified and offer journalists safety.

IV. Major Countries and Organizations Involved

Afghanistan

The Taliban Rule of Afghanistan has suppressed the freedom of press over time, by banning in some provinces all media from broadcasting images of living beings (people and animals), prohibited women from being featured on broadcasts and constantly restricting media through the pretext of “Promotion of Virtue and Prevention of Vice”, with agents monitoring for content deemed against their values, because of the strict enforcement of Islamic Law. Many media outlets have been shut down for alleged violations of “national and Islamic values”. The Taliban Regime has banned live political shows, restricted topics and enforced a list of pre-approved participants. It also has implemented a directive in February 2025 to cease the media from discussing political and economic issues except through official Taliban spokespersons. Moreover, September 2025 reports indicate the Taliban blocked fiber optic internet in several provinces to stop access to news. The censorship in Afghanistan has become a serious problem because of the overuse of power by the Taliban, who are actively replacing independent media with their own propaganda outlets, taking over major television and radio stations and utilizing social media bots to push their agenda. Journalists in Afghanistan are suffering frequent detentions and abuse because of their initiative of informing people about the harmful practices of the government against the citizens. Because of the non-existent freedom of press and frequent abuse of human rights against journalists, many of them have fled the country. CPJ has noted that Afghanistan is one of the countries where most journalists request emergency assistance. The CPJ has urged the Taliban to abolish the press restrictions and severe censorship, while also protecting the journalists’ human rights and offering them, if requested, a safe exit from the country.

Ukraine

The ongoing war between Ukraine and Russia poses problems in the issue of protecting journalists because of the instability of the border area. While CPJ has reported over 175 journalists killed by the Russian forces, the Leader of Kremlin has stated Ukraine has made over 30 casualties of Russian reporters. Even though cases have not been confirmed yet, there are some cases of Russian reporters working in the war zones, that have been killed by Ukraine drones such as Nikita Tsitsagi in June 2024 by Uranian drones and Rostislav Zhuravlev in July 2023 by Ukrainian bombardment. Several Ukrainian reporters have also suffered in this armed conflict by being victims of the Russian troops, by being killed, threatened and harassed, including digital threats and cyberattacks. IMI, a leading Ukraine civil society organization that monitors media freedom has reported 26 violations in February 2025 against press freedom, where they found 14 press violations in Ukraine because of harassment of journalists. International Bodies are requesting the states to offer more importance to journalists' protection in the ongoing area of armed conflict.

Nigeria

Journalists in Nigeria are facing multiple violent threats, attacks, unlawful arrests, incommunicado detention and allegations of torture for covering protests or security issues against the government's values. Researchers have called the year 2025 as a year of impunity, assaults on journalists with state security forces implicated, thus creating a climate of fear among journalists, resulting in self-censorship and misinformation. HRW reports that authorities, including State Security Service agents, often target journalists to silence criticism and punish reporting on government and security issues. The 2015 Cybercrimes Act and subsequent 2024 amendments is frequently used to silence press, despite criticisms that its provisions violate freedom of expression. HRW urges the government to cease the censorship and violent tactics against journalists and ensure that the press can operate without the fear of retribution.

India

UN Special Rapporteurs have expressed grave concerns over the shrinking space for freedom of expression in India, citing widespread internet shutdowns, targeting of journalists and activists, and rising violence against minorities. Key concerns include the misuse of terrorism/sedition laws, surveillance via spyware like the use of Pegasus spyware, internet shutdowns, and censorship under IT rules, targeting critics of the government. Reports highlight that India leads in internet shutdowns, often in Jammu & Kashmir, violating human rights. India is noted for having the

world's highest number of internet shutdowns, often used to silence dissent and restrict access to information. Also the criticizing the ruling of BJP, is being discouraged through laws like the Unlawful Activities (Prevention) Act and the Information Technology (IT) Act. UN Special Rapporteurs have reported on the systematic nature of violence against religious minorities and the targeting of human rights defenders. Reports have noted a "shrinking civic space" through the use of anti-terror legislation against civil society, journalists, and activists. Concerns are frequently raised regarding the harassment, intimidation, and extrajudicial killing of individuals exercising their right to freedom of expression.

Philippines

Although the media is described as “vibrant yet threatened”, in regions of political tension or insurgencies, journalists in the Philippines struggle with violence, harassment and killings. Media reporters also struggle with red-tagging, which means the labelling of journalists as communist sympathizers, which results in the endangerment of their lives. The red-tagging happens because of the NTF-ELCAC task force that Irene Khan urged the government to abolish. The measures to stop threats against journalists taken by the government in 2022 have proved insufficient. The UNHCR’s Observations from November 2022 have expressed concern over intimidation, surveillance and violence against journalists, recommending stronger, faster legal action against perpetrators. Special Rapporteurs have called for urgent legal reforms to end impunity, citing over 100 unsolved journalist killings in the last 30 years. The OHCHR criticized and cited it as a threat to press freedom, the shutdown of the site Rappler and the criminal conviction of Maria Ressa, who has been accused of online defamation to a sentence of 6+ years, while making a reportage over a businessman’s acts of corruption. Therefore, the given case punishes journalism, creates fear among reporters and is politically motivated, seizing the freedom of the press.

Kenya

The Committee to Protect Journalists (CPJ) documents a complex press freedom landscape in Kenya, characterized by an active media scene alongside frequent threats against journalists. Key issues include harassment, assault, and arrests while covering protests, particularly in 2023 and 2024, along with censorship, intimidation by politicians, and legislative challenges to media freedom. Journalists covering anti-government protests in 2023 and 2024 faced violence, with reporter Catherine Wanjeri Kariuki being shot in 2024 and others arrested. CPJ frequently investigates the detention of journalists, such as the 2025 abduction and assault of Tanzanian journalist Maria Sarungi Tsehai in Nairobi. Officials have engaged in intimidation against outlets like the Nation Media Group, while the 2018 Computer Misuse and Cybercrimes Act has been used to target digital content. Impunity for abuses remains a considerable problem, while Kenya has a robust constitution for free speech, prosecutions for attacks against journalists, including the 2009 killing of Francis Nyaruri, often face delays. Progress is being made as in March 2026, the Court of Appeal struck down sections of the 2018 cybercrime law, which was seen as a victory for the press. CPJ continues to monitor Kenya's commitment to protecting journalists during unrest and urges government accountability for attacks on the press.

CPJ

The Committee to Protect Journalists (CPJ) is an independent, non-profit organization founded in 1981, based in New York City, that promotes press freedom worldwide and defends the right of journalists to report the news safely and without fear of reprisal. 2024 was the deadliest year for journalists in CPJ history, with 124 killed, and 2025 saw an even higher record of 129 deaths, largely driven by the conflict in Gaza. CPJ provides legal, medical, and relocation support to hundreds of at-risk journalists annually, with its assistance fund growing five-fold to \$1,000,000 yearly. CPJ is fighting against the use of advanced spyware (like Pegasus) by governments to spy on journalists and their sources. CPJ maintains a database of killed, imprisoned, and missing journalists and produces the Global Impunity Index, which is being reviewed and reoriented to target sanctions against perpetrators. CPJ's strategy plan is based on the following aspects: emergency response, local representation, targeted advocacy, partnership and resilience. CPJ is funded solely by contributions from individuals, corporations, and foundations, and does not accept government funding.

V. Timeline of Events

Date	Description of event
1949	Adoption of the Geneva Conventions
1977	Additional Protocol I recognizes journalists as civilians
2012	UN Plan of Action on the Safety of Journalists is adopted
2015	UN adopts Sustainable Development Goal 16 (peace, justice, strong institutions)
2022–present	Increased journalist casualties in conflicts such as Ukraine

VI. Relevant UN Treaties and Events

- **Geneva Conventions (1949)**
- **Additional Protocol I (1977), Article 79**
- **International Covenant on Civil and Political Rights (ICCPR)**
- **UN Plan of Action on the Safety of Journalists (2012)**
- **Human Rights Council Resolutions on the protection of journalists**

VII. Previous Attempts to Solve the Issues

- **International Legal Frameworks**

Frameworks such as: the Geneva Convention and Additional Protocols, Customary International Law and Rome Statute of the International Criminal Court, where it is mentioned that journalists are being considered as civilians, provided they do not participate directly in hostilities, in both international and non-international armed conflicts and any targeted attacks against them are considered war crimes.

- **UN Security Council and General Assembly Action**

Initiatives such as: Resolution 1738 (2006), Resolution 2222 (2015) and UN Plan of Action on the Safety of Journalists (2012) have been adopted to protect journalists' human rights, ending impunity and creating a safe area for reporters, including those in conflict zones.

- **NGO and Specialized Protection Mechanisms**

NGOs and Specialized Protection Mechanisms are actively working on helping journalists' violation of human rights by offering immediate intervention when reporters are either wounded, detained or killed at the ICRC Emergency Hotline. Other organizations are also advocating for better protection against targeted attacks, and offer safety training, equipment, psychological support and legal assistance for journalists working in war zones.

- **Regional Initiatives**

EU encourages states to condemn and investigate the targeted attack on journalists more and create guidelines for their safety. NGO's such as Press Emblem Campaign is fighting for a more specific international convention to enhance the protection of reporters. There are several campaigns that track the journalists' killings and advocate for bringing them more safety in conflict areas.

VIII. Possible Solutions

- **Strengthening Legal Frameworks**

States should enforce the already signed and ratified conventions for the protection of journalists' human rights and safety, assuring accountability for violations.

- **Combating Impunity**

Improving juridical systems and ensuring independent investigations into crimes against journalists, while also assuring the attackers receive an imprisonment sentence.

- **Training and Protection Measures**

Protection measures such as making journalists wear special bulletproof vests of different colors and accreditation to signal their presence as civilians, can make a difference in offering more safety to reporters in armed conflict areas. Programs focused on training journalists on how to act in different circumstances: when being assaulted, threatened or detained, might also be beneficial for their protection.

- **International Cooperation and Information Sharing**

Enhanced international cooperation and information sharing to combat the problem of safeguarding journalists in armed conflict areas.

- **International Monitoring Mechanisms**

The existence of a monitoring mechanism such as military forces on the field just to supervise journalists' safety or NGOs keeping track of journalist killings and offering safe areas, might offer more protection. Journalists should be monitored by sharing their locations with the government military forces. The equipment of journalists has to always be able to transmit when they are exposed to dangerous situations, while also ensuring a concrete enforcement intervention.

Temporary Safe Corridors

Short-term negotiated routes or areas where fighting is paused or restricted, that are going to allow gathering media information and reportages, evacuation of journalists in cases of injuries or sending human aid.

Questions delegates should consider during Research

- What instances does my country have for the freedom of the press?
- Does my delegation's country have a history of targeted attacks on journalists?
- How is my delegation's country counteracting the problem of safeguarding journalists in armed conflict areas?
- How does my delegation's country offer protection for journalists against targeted violence, impunity and censorship?
- What is my country's stance on the impunity of journalists' killings?

IX. Sources

Background information

- Office of the United Nations High Commissioner for Human Rights
<https://www.ohchr.org/en/special-procedures/sr-freedom-of-opinion-and-expression>
- UNESCO – Safety of Journalists
<https://www.unesco.org/en/safety-journalists>
- International Committee of the Red Cross – Journalists under IHL
<https://www.icrc.org/en/document/journalists-and-media-professionals>
- Committee to Protect Journalists
<https://cpj.org/reports/>

Countries and Organizations involved

- Human Rights Watch (country reports)
<https://www.hrw.org/world-report>
- Reporters Without Borders
<https://rsf.org/en/index>
- Afghanistan (press freedom situation)
<https://www.amnesty.org/en/location/asia-and-the-pacific/south-asia/afghanistan/>
- Ukraine (journalists in war)
<https://cpj.org/europe/ukraine/>
- Nigeria (press freedom violations)
<https://www.hrw.org/africa/nigeria>
- India (freedom of expression concerns)
<https://www.ohchr.org/en/press-releases>
- Philippines (journalist safety issues)
<https://www.ohchr.org/en/countries/asia/philippines>

Timeline of events

- United Nations – history of Geneva Conventions
<https://www.un.org/en/about-us/history-of-the-un>
- International Committee of the Red Cross – IHL timeline
<https://www.icrc.org/en/document/timeline-international-humanitarian-law>
- UNESCO – UN Plan of Action (2012)
<https://www.unesco.org/en/safety-journalists/un-plan-action>
- UN Sustainable Development Goals
<https://sdgs.un.org/goals>

Relevant UN treaties and events

- Geneva Conventions (1949)
<https://www.icrc.org/en/war-and-law/treaties-customary-law/geneva-conventions>
- Additional Protocol I (1977), Article 79
<https://ihl-databases.icrc.org/en/ihl-treaties/api-1977/article-79>
- International Covenant on Civil and Political Rights
<https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights>

- UN Plan of Action on Safety of Journalists
https://www.ohchr.org/sites/default/files/documents/issues/journalists/un-plan-on-safety-journalists_en.pdf
- UN Security Council Resolution 1738 (2006)
[https://undocs.org/S/RES/1738\(2006\)](https://undocs.org/S/RES/1738(2006))
- UN Security Council Resolution 2222 (2015)
[https://undocs.org/S/RES/2222\(2015\)](https://undocs.org/S/RES/2222(2015))



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